

Vaseeullah v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 29 May 2023 · 2023:AHC:118941-DB · Writ-C No. 16448 of 2023 · **Final assessment quashed for fresh Supply Code order**

HEADNOTE

A section 126 final assessment issued on a printed proforma, without adverting to the consumer's objection or giving reasons, fails the Supply Code requirement of opportunity, hearing, and a reasoned order. Where the authority admits the objection was never placed before the assessing officer, the assessment is quashed and a fresh order must follow the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Vaseeullah challenged a demand of Rs.72,572 raised in a section 126 assessment. He had disputed unauthorised use of electricity. The final assessment dated 6 December 2022 was made on a printed proforma and did not notice his objection. The assessing authority explained that its clerk had not placed the objection on the file. By a letter of 22 May 2023 the consumer was given fifteen days to file the objection with evidence, and counsel for the respondents stated that a fresh order would be passed.

REUSABLE CONSTRUCTIONS

1. A section 126 final assessment on a printed proforma, which neither notices the consumer's objection nor gives reasons for rejecting it, is not a valid assessment order. ¶ 2
2. Where the assessing authority admits that the consumer's objection was never placed before it, the final assessment is quashed and must be redone strictly under the U.P. Electricity Supply Code, 2005. ¶ 3-4

HOLDING-UNITS

INTERPLAY · EA2003::126(3)

printed proforma final assessment without considering objections

HOLDING

In a section 126 assessment the Supply Code requires the assessing authority to let the consumer file objections and to afford a hearing. The final order must advert to those objections and give reasons for not accepting them. An order on a printed proforma, showing no application of mind and ignoring a denial of unauthorised use, is the antithesis of that requirement. The final assessment dated 6 December 2022 is quashed. The respondents may pass a fresh order strictly in accordance with the procedure under the U.P. Electricity Supply Code, 2005. ¶ 2-4

PRINCIPLE TAGS

s126-procedural-strictness-notice-and-hearing A printed-proforma final assessment that did not advert to the consumer's denial of unauthorised use, or give reasons, was held to negate the Code's requirement of opportunity, hearing, and a reasoned order. ¶ 2

section-126-fresh-assessment-must-follow-code-procedure-after-remand After the authority admitted the objection had not been considered, the final assessment was quashed and a fresh order was left to be passed strictly under the U.P. Electricity Supply Code, 2005. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER HAD USED ELECTRICITY UNAUTHORISEDLY, AND WHAT SUM IF ANY IS ASSESSABLE

Merits left to a fresh order after objection and hearing under the Supply Code. ¶ 4

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.